

TENTATIVE RULINGS

FOR: September 09, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom

Join by Video

<https://www.zoomgov.com/j/1618700612?pwd=3bjaxoPtjuWe7B7JQWBQ8muwSuMiXC.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Estate of Gavin Charles Scholle

26PR000038

AMENDED PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: There is neither proof of service on Diane Faulk nor proof of publication on file. If code-compliant proof of each is filed prior to the hearing, the petition will

be GRANTED, Richard S. Thomas will be appointed as probate referee, and the matter will be set for a Status Hearing Re: Final Distribution on September 09, 2027, at 8:30 a.m. in Dept. A.

The Court construes Petitioner’s verification of the Petition, requesting waiver of bond, as his consent to waiver.

If either proof (of service or publication) has not been made, the Court will be forced to DENY the Petition without prejudice. Service and publication are required to invest the Court with subject matter jurisdiction over the Estate. (Prob. C. § 8005, subd. (b)(1)(C); see also *Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“[t]he court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question”].) Therefore, the Petition may not be heard unless and until an affidavit of publication, and proof of service of notice are on file. (Prob. C. § 8124.) The first of the three required publications must be at least 15 days before the hearing. (Prob. C. §8121(a).) Finally, the hearing on the Petition must be no less than 15 days and no more than 30 days after the Petition is filed. (Prob. C. §8003(a).) For this reason, if no publication of the hearing was made and/or no proof of service of notice, the Court is without jurisdiction to hear the Petition and cannot continue the hearing to permit Petitioner to cure the defect.

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Estate of Manuel D Gomes

26PR000178

PETITION FOR LETTERS OF ADMINISTRATION AND AUTHORIZATION TO
ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: There is no proof of publication on file. If a proper proof of publication is filed prior to the hearing, the petition will be GRANTED, Richard S. Thomas will be appointed as probate referee, and the matter will be set for a Status Hearing Re: Final Distribution on September 09, 2027, at 8:30 a.m. in Dept. A.

However, if no publication has been made, the Court will be forced to DENY the Petition without prejudice. Publication is required to invest the Court with subject matter jurisdiction over the Estate. (Prob. C. § 8005, subd. (b)(1)(C).) Therefore, the Petition may not be heard unless and until an affidavit of publication is on file. (Prob. C. § 8124.) The first of the three required publications must be at least 15 days before the hearing. (Prob. C. §8121(a).) Finally, the hearing on the Petition must be no less than 15 days and no more than 30 days after the Petition is filed. (Prob. C. §8003(a).) For this reason, if no publication of the hearing was made, the Court is without jurisdiction to hear the Petition and cannot continue the hearing to permit Petitioner to cure the defect.

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